



October 30, 2019

Federal Maritime Commission
Rachel Dickon
Commission Secretary
secretary@fmc.gov

Re: SUPPORT: Interpretive Rule on Detention and Demurrage under the Shipping Act

Honorable Commissioners:

On behalf of **California Cartage Transportation, LLC companies**, a member of the Harbor Trucking Association, we first wanted to thank the commission for taking time to address this important issue. It has been a growing concern of the ours that we have been the victim of unreasonable business practices that have undermined the once well intended practice of using detention and demurrage to incentivize an expedient movement of cargo. Now, I find myself the subject of unreasonable charges and saddled with the expensive administrative burden of proving that I am not at fault for charges I never agreed to and am not responsible for. These unreasonable practices have caused great financial distress to my company, while serving as a profit center for the entities who charge detention and demurrage. The leadership of the Federal Maritime Commission (FMC) on this important issue has been greatly appreciated by the motor carrier community, and we strongly urge you to move forward with adopting the interpretive rule to help end the current abuses that result from antiquated rules regarding detention and demurrage.

1. The proposed rule provides important guidance to the maritime industry regarding how the FMC will evaluate the reasonableness of port demurrage and container charges.
 - There is a need for FMC guidance to address serious concerns over ocean carrier and marine terminal demurrage/detention charges as demonstrated in the Fact-Finding Investigation and the Petition filed by the Coalition for Fair Port Practices.
 - The proposal identifies key principles and examples of reasonable practices that will be considered by the FMC in the context of a 10(d) claim as to demurrage/detention, while providing the necessary flexibility to account for differing factual circumstances (e.g. rule provides a non-exhaustive list of principles but is non-binding).
 - The proposal will greatly benefit the US maritime industry by promoting efficient cargo handling and delivery, improving commercial fairness in the assessment of the charges, while also reducing confusion and disputes.
2. The Interpretive Rule seeks to align demurrage/detention rules and practices with their intended purpose of incentivizing efficient cargo handling and delivery.
 - The Incentive Principle is supported by the law and Shipping Act policies.
 - Support suspension of charges (or at least extension of free time) where efficiency incentives are not able to be achieved.
 - Appropriate for cargo interests to fulfill their responsibilities to receive and pick up cargo but no need for advance payment of all charges where credit has been agreed to between shipper and ocean carrier. Also, pre-payment should not apply to disputed charges.



3. Comments on Specific Aspects of the Interpretive Rule

- Scope of the Rule: Rule broadly applies to all charges applied to use of marine terminal space or shipping containers, except freight, and to containerized trade only.
- Cargo Availability. Under the current rules and the Shipping Act, cargo is deemed available when it is unloaded from the vessel. However, in this case the cargo is never truly available until later. With cargo being held for holds by customs, being inaccessible because the terminal has kept it in a “close area”, or, in the more modern terminal operations, the container not having an available appointment, cargo is rarely, if ever, available when the free-time clock starts. Knowing when cargo is actually available will help ensure that pickup is timely scheduled—reducing idle and wasted hours truckers spend waiting for containers to become available. Free time should be tied to actual cargo availability and not vessel arrival since you cannot incentivize efficient cargo pickup if the cargo may not yet be available (i.e. held in a closed yard or location at the terminal). Free time should be stopped if container is no longer available. Important to consider the workings of terminal appointment systems in evaluating reasonableness—should be some minimum period of appointment availability.
- FMC correctly determined that the manner in which notice of cargo availability is communicated is a critical aspect of reasonableness. Notice must be timely and readily accessible to the contracting party or its designee, must provide clear information as to when and where cargo may be retrieved, and “push notices” are favored.
- Government Inspections. Need input here as to which of the 3 offered approaches makes the most sense: (1) waiver or extension of free time; (2) cap on the amount of charges that may accrue; or (3) no escalation of demurrage/detention during inspections. Option 1 seems the most commercially-oriented but understand that parties may see benefits in the other proposals.
- Dispute Resolution. FMC has properly identified the types of policies, rules and practices that would greatly improve dispute resolution processes. Defined time frames should apply to both filing and responding to claims must operate to facilitate resolution of disputes and not unreasonably cut off claims.
- Billing. Agree with FMC that demurrage/detention invoices must include adequate information to allow a shipper/trucker to audit and contest the charges. Favor invoicing that is tied to contractual relationships rather than ownership or control of the assets, i.e. ocean carriers should continue to bill their customers directly, rather than terminals billing for demurrage, since parties should be able to negotiate demurrage terms in their service contracts.
- Evidentiary guidance. Support FMC proposal encouraging the identification of information that can facilitate dispute resolution, such as appointment logs and trouble tickets.
- Terminology. Support FMC proposal for the use of more consistent demurrage and detention terminology in carrier and terminal tariffs, including that the most common understanding of these terms is based on the source of the charge (land for demurrage) and (container for detention) as opposed to the location (inside or outside the terminal).



4. EXAMPLES OF UNREASONABLE BUSINESS PRACTICES THAT RESULTED IN UNFAIR DETENTION OR DEMURRAGE CHARGES

- Container **EMCU3713487**, Marine Container Terminal - Everport Terminal Services (ETS), Paid 1 day of Demurrage
 - i. Container discharged on 10/24/19 @ 12:50am and it was immediately placed in a closed area.
 - ii. The container did not become available until; Saturday the 26th of October. (see email from terminal advising container becoming available)
 - iii. Per terminal tariff, if container was available for pick-up the entire time after it was discharged, the LFD should have been 10/29/19.
 - iv. Because the container was moved into a closed area until Saturday the 26th. The LFD should have been Wednesday Oct. 30th.
- **BMOU4872868 & EGSU1009544**, Marine Container Terminal –Fenix Marine Services (FMS) was previously known as Eagle Marine Services (EMS)
 - i. Container discharged on Saturday August 4th, 2018. Per terminal Tariff, LFD August 8th, 2018.
 - ii. We were unable to secure an appointment within the free time window.
 - iii. Terminal reverted back to our request to extend the last free time with a unilateral ad hoc business practice/policy that was never in place prior to their inability to provide the industry adequate amount of appointments to service the volumes traversing through their facility within their allotted tariff free time.
 - iv. We sent an email within the free time window, Tuesday August 7th, 2018 because we were unable to secure an appointment until after the Last Free Day.
 - v. The marine terminal did not respond to our request until after the last free day, Friday August 10th, 2018.
 - vi. The customer authorized us to pay demurrage on their behalf because they needed the product and could no longer wait for reasonable heads to prevail.
 - vii. Due to the lack of appointments within the Tariff Free Time, we were forced to absorb unreasonable demurrage charges.

5. FMC should proceed to adopt its proposed interpretive rule promptly.

Should you have any questions, I can be reached at Robert.Loya@cmiamerica.com.

Respectfully,

A handwritten signature in black ink, appearing to read "Robert Loya", with a stylized flourish extending from the end.

Robert Loya
Vice President, CMI West
California Cartage Company, a Division of NFI Industries

Robert Loya

From: Stephanie Cardenas
Sent: Wednesday, October 30, 2019 8:53 AM
To: Robert Loya; Randy Perez; Marlon Palacios
Cc: Jeanette Landeros
Subject: RE: EMCU3713487
Attachments: RE: EMCU3713487

Please see attached container became available Saturday.

Stephanie Cardenas

CMI Transportation LLC
1501 E Lomita Blvd
Wilmington, CA 90744
Office: (310)549-5100
Website: www.cmiamerica.com

From: Stephanie Cardenas
Sent: Wednesday, October 30, 2019 8:44 AM
To: Robert Loya; Randy Perez; Marlon Palacios
Cc: Jeanette Landeros
Subject: RE: EMCU3713487

I do not have a screen shot, I've sent an email to the terminal to advise when this was moved to an open area.

Container is out of evergreen, it is open Saturdays.

Stephanie Cardenas

CMI Transportation LLC
1501 E Lomita Blvd
Wilmington, CA 90744
Office: (310)549-5100
Website: www.cmiamerica.com

From: Robert Loya
Sent: Wednesday, October 30, 2019 8:38 AM
To: Stephanie Cardenas; Randy Perez; Marlon Palacios
Cc: Jeanette Landeros; Robert Loya
Subject: RE: EMCU3713487

Randy,

We need to push back on this one and get reimbursed. I think Pam already paid it, but reach out to Ron Neal and get this extended. If they are not open on Saturday, then the free time shouldn't start until Monday. If Friday it was in a closed area, then the clock doesn't start on Friday. I also highly doubt that we were able to get an appointment on the first day.

Stephanie,

Do you have a screen shot reflecting it being closed area?

Robert Loya
Vice President, CMI West
CMI Transportation, LLC
www.cmiamerica.com
Phone (310) 549-5100
Fax (310) 559-6100
Cell (562)714-9627

From: Stephanie Cardenas
Sent: Wednesday, October 30, 2019 8:33 AM
To: Randy Perez <Randy.Perez@cmiamerica.com>; Robert Loya <Robert.Loya@cmiamerica.com>; Marlon Palacios <Marlon.Palacios@cmiamerica.com>
Cc: Jeanette Landeros <Jeannette.Landeros@cmiamerica.com>
Subject: RE: EMCU3713487

Container was in closed area Friday, im assuming it became available Saturday. Monday when I came in it was available and scheduled for the next day.

Stephanie Cardenas

CMI Transportation LLC
1501 E Lomita Blvd
Wilmington, CA 90744
Office: (310)549-5100
Website: www.cmiamerica.com

From: Randy Perez
Sent: Wednesday, October 30, 2019 8:19 AM
To: Robert Loya; Stephanie Cardenas; Marlon Palacios
Cc: Jeanette Landeros; Randy Perez
Subject: RE: EMCU3713487

Please advise when it became available in eModal. Trinium states AV date of 10/28 and the contract with the SSL is 4 working days.

TMS Container Status (F11)
X

Master B/L:

Container Number:

Status:

Current Leg: 1
 Type: FCL
 Status: AVAILABLE
 From: Evergreen Terminal
 To: WORLD PACK

Container Available Date:	10/28/2019	10:03	Available Now	Clear Date
Chassis Available Date:			Available Now	Clear Date
Empty Available Date:			Available Now	Clear Date
Container Demurrage LFD:	10/31/2019		Calculate LFD	Check Availability
Chassis Demurrage LFD:	//		Calculate LFD	
CES Demurrage LFD:	//		Calculate LFD	
Container Per Diem LFD:	//		Calculate LFD	Set Per Diem Clock
Chassis Per Diem LFD:	//		Calculate LFD	

☐ Apply to all containers on the same vessel
☐ Apply to all containers on the same job

Dispatch Notes
 EDI Format: 246
 EDI Set: MER015/204
 {EDI - 10/24/2019 16:03}

Driver Notes
 Delivery Instructions:
 Yard hours is 24/7

Carrier and Contract #	Expiry date	Chassis Included	Free days at Terminal	Free Detention Days
APL # 19-7195	April 30/ 20	no	4 working days	10 calendar days
COSCO #ECI19060	April 30/ 20	no	4 working days	8 working days
Evergreen #SC75321	May 31/20	Yes, 4 days	4 working days	12 calendar days
Hamburg Sud #AECC9000251	May 31/20	no	4 working days	10 working days
Hapag Lloyd# S17NNE072	June 30/19	Yes, 5 days	5 working days	10 working days
Hyundai #1825062	June 30/19	no	4 working days	10 calendar days
Maersk #296819702	May 31/20	yes, 9 calendar days	5 working days	7 working days
MSC # 19-525WW	May 31/20	yes	4 working days	10 calendar days
ONE# NYCB00902	May 31/20	no	4 working days	10 working days
SM Line # AEN190426	April 30/ 20	no	4 working days	14 calendar days
Wan Hai# LAX19-005B	May 31/20	Yes	4 working days	12 calendar days

Randy Perez | Terminal Manager
 CMI Transportation LLC
 O: 310.549.5100 x3402 | C: 310.701.1492
Randy.Perez@cmiamerica.com

From: Robert Loya
Sent: Wednesday, October 30, 2019 8:06 AM
To: Stephanie Cardenas <Stephanie.Cardenas@cmiamerica.com>; Randy Perez <Randy.Perez@cmiamerica.com>; Marlon Palacios <Marlon.Palacios@cmiamerica.com>
Cc: Jeanette Landeros <Jeannette.Landeros@cmiamerica.com>; Robert Loya <Robert.Loya@cmiamerica.com>
Subject: RE: EMCU3713487

Marlon / Randy,

Please provide some additional detail as to why this was missed/rescheduled.

Thanks

Robert Loya
Vice President, CMI West
CMI Transportation, LLC
www.cmiamerica.com
Phone (310) 549-5100
Fax (310) 559-6100
Cell (562) 714-9627

From: Stephanie Cardenas
Sent: Wednesday, October 30, 2019 8:02 AM
To: Pamela Grundman <Pamela.Grundman@cmiamerica.com>; Myphuong Nguyen <Myphuong.Nguyen@cmiamerica.com>; Lynn Hsu <Lynn.Hsu@cmiamerica.com>; Dianna Giang <Dianna.Giang@cmiamerica.com>
Cc: Robert Loya <Robert.Loya@cmiamerica.com>; Randy Perez <Randy.Perez@cmiamerica.com>; Jeanette Landeros <Jeannette.Landeros@cmiamerica.com>; Marlon Palacios <Marlon.Palacios@cmiamerica.com>
Subject: EMCU3713487

Good morning,

Please pay demurrage for below container through today out of evergreen.

CMI expense.

Container was rescheduled by dispatch going based off of triniums LFD. Actual LFD 10/29.

Type:	ALL	Sort:	PU Date	DL Date	Order/PU Date	Order/DL Date	Order/Leg	Container	Dynamic Query	UNK			
N	STS	PICK UP	DELIVER	CUSTMR	CustCode	CONTAINER	CHASSIS	BOL	BK #	SSL	SIZE	TYPE	LTY
*	AV	233	WORLDPA	WORLDPA	MER015	EMCU 371348-7		EGLV14990410255		EGLV	20		FC
	NA	WORLDPA	233	WORLDPA	MER015	EMCU 371348-7		EGLV14990410255		EGLV	20		EC

EMCU3713487

Stephanie Cardenas
CMI Transportation LLC
1501 E Lomita Blvd

Wilmington, CA 90744

Office: (310)549-5100

Website: www.cmiamerica.com

Robert Loya

From: Jeanette Landeros
Sent: Tuesday, August 14, 2018 2:36 PM
To: Pamela Grundman; Lynn Hsu; Dianna Giang
Cc: Brett Arnds; Nelson Gonzalez; Robert Loya
Subject: FW: [EMS Management Customer Service] RE: No appointments available before LFD

Pam/Lynn

Please clear demurrage at APL on Michaels behalf thru 8/16. We have an appointment secure 8/16
BMOU4872868

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Angela Douglas [mailto:DOUGLASA@michaels.com]
Sent: Tuesday, August 14, 2018 2:32 PM
To: Jeanette Landeros; Danielle Morrow; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN
Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Get this covered for Michaels so this does not sit any longer.
Thank you

Angela Douglas
Manager – International Transportation Services



Michaels Stores, Inc. | 8000 Bent Branch Dr, Irving, TX 75063 | (O) 972.409.1622 | douglasa@michaels.com

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From: Jeanette Landeros [mailto:Jeanette.Landeros@cmiamerica.com]
Sent: Tuesday, August 14, 2018 4:31 PM
To: Angela Douglas <DOUGLASA@michaels.com>; Danielle Morrow <danielle.morrow@ascentgl.com>; Belinda Bathie

<bathieb@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>; EVERGREEN LA CUSTOMER SERVICE <laxtfcimp@evergreen-shipping.us>; GINGER CHANG <gingerchang@evergreen-shipping.us>; RYAN MCCLELLAN <ryanmcclellan@evergreen-shipping.us>
Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny <paul@michaels.com>; billylipper@evergreen-shipping.us
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

⚠ External Email ⚠

\$600

Jeannette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Angela Douglas [<mailto:DOUGLASA@michaels.com>]
Sent: Tuesday, August 14, 2018 2:27 PM
To: Jeanette Landeros; Danielle Morrow; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN
Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

How much is due on this now.

Angela Douglas
Manager – International Transportation Services



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From: Jeanette Landeros [<mailto:Jeannette.Landeros@cmiamerica.com>]
Sent: Tuesday, August 14, 2018 4:24 PM
To: Angela Douglas <DOUGLASA@michaels.com>; Danielle Morrow <danielle.morrow@ascentgl.com>; Belinda Bathie <bathieb@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>; EVERGREEN LA CUSTOMER SERVICE <laxtfcimp@evergreen-shipping.us>; GINGER CHANG <gingerchang@evergreen-shipping.us>; RYAN MCCLELLAN <ryanmcclellan@evergreen-shipping.us>

Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny <paul@michaels.com>; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

△ External Email △

Angela,

We still have BMOU4872868 pending demurrage, we have an appointment 8/16 @ 1300hr

Jeannette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Angela Douglas [<mailto:DOUGLASA@michaels.com>]

Sent: Monday, August 13, 2018 5:19 PM

To: Jeanette Landeros; Danielle Morrow; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN

Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

We need this container tonight, please pay on our behalf. I will need the final cost.

Angela Douglas
Manager – International Transportation Services



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From: Jeanette Landeros [<mailto:Jeannette.Landeros@cmiamerica.com>]

Sent: Monday, August 13, 2018 6:46 PM

To: Angela Douglas <DOUGLASA@michaels.com>; Danielle Morrow <danielle.morrow@ascentgl.com>; Belinda Bathie <bathieb@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>; EVERGREEN LA CUSTOMER SERVICE <laxtfcimp@evergreen-shipping.us>; GINGER CHANG <gingerchang@evergreen-shipping.us>; RYAN MCCLELLAN <ryanmcclellan@evergreen-shipping.us>

Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny

<paul@michaels.com>; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

△ External Email △

Angela,

Please advise if you want us to clear demurrage on your behalf or Marisol so we can pick up this container tonight. We have a midnight appointment
EGSU1009544

Jeannette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Jeanette Landeros

Sent: Monday, August 13, 2018 4:09 PM

To: 'Angela Douglas'; Danielle Morrow; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN

Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

No still show on demurrage

Jeannette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Angela Douglas [<mailto:DOUGLASA@michaels.com>]

Sent: Monday, August 13, 2018 3:45 PM

To: Jeanette Landeros; Danielle Morrow; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN

Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

I have not seen a response on this from Evergreen.
Are you seeing the containers with apts for tonight extended?

Angela Douglas
Manager – International Transportation Services



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From: Jeanette Landeros [<mailto:Jeanette.Landeros@cmiamerica.com>]

Sent: Monday, August 13, 2018 4:36 PM

To: Danielle Morrow <danielle.morrow@ascentgl.com>; Angela Douglas <DOUGLASA@michaels.com>; Belinda Bathie <bathieb@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>; EVERGREEN LA CUSTOMER SERVICE <laxtfcimp@evergreen-shipping.us>; GINGER CHANG <gingerchang@evergreen-shipping.us>; RYAN MCCLELLAN <ryanmcclellan@evergreen-shipping.us>

Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny <paul@michaels.com>; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

⚠ External Email ⚠

Sorry only one is schedule for tonight

EGSU1009544 schedule for tonight 8/13

BMOU4872868 schedule for 8/16

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Danielle Morrow [<mailto:danielle.morrow@ascentgl.com>]

Sent: Monday, August 13, 2018 2:18 PM

To: Jeanette Landeros; Angela Douglas; Belinda Bathie; Marisol - Michaels_Team; EVERGREEN LA CUSTOMER SERVICE; GINGER CHANG; RYAN MCCLELLAN

Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Adding in some addition contacts from Evergreen.



Danielle Morrow LCB, CCS
Account Manager
International Freight Forwarding

Ascent Global Logistics
Office: 417.823.9800
2424 W. Kingsley St. Suite C
Springfield, MO 65807
www.ascentgl.com

To log in to miSTAT, please visit www.marisolintl.com



All business transactions are subject to Ascent Global Logistics' terms and conditions, available at Ascent Global Logistics.
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SVI Monitoring may be requested at ctpat.cbp.dhs.gov/trade-web/

From: Jeanette Landeros [<mailto:Jeanette.Landeros@cmiamerica.com>]

Sent: Monday, August 13, 2018 4:14 PM

To: Angela Douglas <DOUGLASA@michaels.com>; Danielle Morrow <danielle.morrow@ascentgl.com>; Belinda Bathie <bathieb@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>

Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny <paul@michaels.com>; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Evergreen,

Please advise on the below, we have appointments schedule for tonight

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Angela Douglas [<mailto:DOUGLASA@michaels.com>]

Sent: Friday, August 10, 2018 4:55 PM

To: Danielle Morrow; Jeanette Landeros; Belinda Bathie; Marisol - Michaels_Team

Cc: Brett Arnds; RyanMcClellan@evergreen-shipping.us; Paul Zahrabelny; billylipper@evergreen-shipping.us

Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Importance: High

CMI,

Did you involve Evergreen at any point? If the terminal is not giving you an apt within the free time and the terminal will not extend, we need the Ocean liner to intervene. The ocean liner chooses to use this terminal and can help. Michaels should not be liable for storage due to this situation. We also need to know earlier on if you cannot get an apt., again we can involve Evergreen to push the Terminal for an. Apt.

Evergreen,
Need you help on this, please advise if you can help push the free time to meet the Apt available.

Angela Douglas
Manager – International Transportation Services



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From: Danielle Morrow [<mailto:danielle.morrow@ascentgl.com>]
Sent: Friday, August 10, 2018 4:57 PM
To: Jeanette Landeros <Jeanette.Landeros@cmiamerica.com>; Belinda Bathie <bathieb@michaels.com>; Angela Douglas <DOUGLASA@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>
Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

⚠ External Email ⚠

We will need approval from Michaels.

Michaels do you approve the below?



Danielle Morrow LCB, CCS
Account Manager
International Freight Forwarding

Ascent Global Logistics
Office: 417.823.9800
2424 W. Kingsley St. Suite C
Springfield, MO 65807
www.ascentgl.com

To log in to miSTAT, please visit www.marisolintl.com



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From: Jeanette Landeros [<mailto:Jeanette.Landeros@cmiamerica.com>]
Sent: Friday, August 10, 2018 4:55 PM
To: Belinda Bathie (bathieb@michaels.com) <bathieb@michaels.com>; 'Angela Douglas' (DOUGLASA@michaels.com) <DOUGLASA@michaels.com>; Marisol - Michaels_Team <michaels_team@marisolintl.com>; Danielle Morrow <danielle.morrow@ascentgl.com>
Cc: Brett Arnds <Brett.Arnds@cmiamerica.com>
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Danielle,

Can you please assist clearing demurrage for containers below.

BMOU4872868 We have an appointment secure for pick up tomorrow.
EGSU1009544 Unable to secure an appointment yet, please clear demurrage thru Monday

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Jeanette Landeros
Sent: Friday, August 10, 2018 2:16 PM
To: Belinda Bathie (bathieb@michaels.com); 'Angela Douglas' (DOUGLASA@michaels.com)
Cc: Brett Arnds
Subject: FW: [EMS Management Customer Service] RE: No appointments available before LFD

Belinda/Angela,

Please see below, we have 2 containers on demurrage due to no appointments available before LFD. I sent an email to the terminal on Tuesday for assist and didn't get a reply until today. Please see below

BMOU4872868
EGSU1009544

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Jeanette Landeros
Sent: Friday, August 10, 2018 1:38 PM
To: 'Desiree Finlinson'
Cc: Denise Cervantes; EMS Import; Brett Arnds; Nelson Gonzalez; EMS Demurrage; EMSCS_MGT; Robert Loya
Subject: RE: [EMS Management Customer Service] RE: No appointments available before LFD

Desiree,

I sent an email on Tuesday and I get a reply until Friday at 1:30 in the afternoon (I sent 2 request about this today). If this wasn't going to be approved it would have been nice to receive an email same or following day of my request. Now instead of paying 1 day of demurrage we will be responsible for a lot more day of demurrage because it took 3 days for a reply. Since our driver couldn't pick up the load this morning due to demurrage appointment expired and I'm not able to secure a new appointment until tomorrow.

Jeanette Landeros

CMI Operations
1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax



From: Desiree Finlinson [<mailto:dfinlinson@keelsonmgt.com>]
Sent: Friday, August 10, 2018 1:22 PM
To: Jeanette Landeros
Cc: Denise Cervantes; EMS Import; Brett Arnds; Nelson Gonzalez; EMS Demurrage; EMSCS_MGT
Subject: Re: [EMS Management Customer Service] RE: No appointments available before LFD

Distr,
After reviewing your request, we unable to assist in extending LFD because it wasn't received within 24 hours of container discharging. Container discharged on 8/4/18 and request for extension wasn't received until 8/7/18. Should have been received by 8/6/18 in order to be reviewed or considered to qualify within first 24 hours.

We have made some adjustments to the policy, so if the trucker can provide proof within 24 hrs that there were no appts available, we will extend the LFD.

Last Free Day Extension for no Appointment Availability

- Screenshot of e-Modal showing appointment options AND must be within 24 hours of first available day of delivery (for example Monday if it's discharged on the weekend)
- Secure soonest appointment available
- LFD update will be granted to the appointment date
- Send above information to EMS import clerks ([u_ems_import@emslax.com](mailto:ems_import@emslax.com))

BMOU4872868

Regards,

Desiree Finlinson

Keelson Management LLC

(480) 935-5723 - Office

(480) 271-3779 - Cell

dfinlinson@keelsonmgt.com

On Fri, Aug 10, 2018 at 8:16 AM, Jeanette Landeros <Jeannette.Landeros@cmiamerica.com> wrote:

Good Morning,

Please advise asap, I sent an email on Tuesday 8/07/18 and container still on demurrage. We had an 8am appointment secure for pick up today.

Jeanette Landeros

CMI Operations

[1501 East Lomita Blvd.](#)

Wilmington, CA 90744

(310) 549-5100 Office

(310) 549-6100 Fax



From: Denise Cervantes [mailto:denise_cervantes@emslax.com]

Sent: Wednesday, August 08, 2018 1:45 PM

To: EMS Import

Cc: Brett Arnds; Nelson Gonzalez; Jeanette Landeros; EMS Demurrage; EMSCS_MGT

Subject: Re: No appointments available before LFD

MGT,

PLEASE ADVISE IF WE MAY EXTEND LFD FOR CONTAINERS BELOW.

THANK YOU

DENISE CERVANTES

On Tuesday, August 7, 2018 at 1:13:12 PM UTC-7, Jeanette Landeros wrote:

Please extend LFD, both containers are LFD 8/09 and no appointments available before LFD

BMOU4872868

EGSU1009544



Jeanette Landeros
CMI Operations

1501 East Lomita Blvd.
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax

received this in error, please contact the sender immediately and destroy the message and any attachments or copies (electronic or hard copy). This e-mail shall not be considered a legally binding agreement or amendment to any agreement.

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Robert Loya

From: Bob Sanders <bsanders@calcartage.com>
Sent: Monday, August 13, 2018 10:59 AM
To: Robert Loya
Subject: Re: [EMS Management Customer Service] RE: No appointments available before LFD

OK, let's do it.

Sincerely,

Robert W. Sanders
Associate General Counsel
NFI California Cartage Company
2931 Redondo Avenue, Long Beach, CA 90806
Telephone: (562) 308-4157
Mobile: (562) 572-1505
Email: rsanders@calcartage.com

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On Mon, Aug 13, 2018 at 10:57 AM, Robert Loya <Robert.Loya@cmiamerica.com> wrote:

I can come over tomorrow around 10:30 am if that's ok?

Robert Loya

Director of Operations

CMI Transportation, LLC

www.cmiamerica.com

Phone (310) 549-5100

Fax (310) 559-6100

Cell (562)714-9627

From: Bob Sanders [mailto:bsanders@calcartage.com]
Sent: Monday, August 13, 2018 10:56 AM

To: Robert Loya

Subject: Re: [EMS Management Customer Service] RE: No appointments available before LFD

Robert, today and Thursday are not so great for me. Tues, Wed, or Friday I'm pretty open. Let me know when you'd like to meet. Thanks.

Sincerely,

Robert W. Sanders
Associate General Counsel

NFI California Cartage Company
[2931 Redondo Avenue, Long Beach, CA 90806](#)
Telephone: (562) 308-4157

Mobile: (562) 572-1505

Email: rsanders@calcartage.com

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On Fri, Aug 10, 2018 at 3:46 PM, Robert Loya <Robert.Loya@cmiamerica.com> wrote:

Mr. Sanders,

Do you have some time next week to discuss this ongoing situation with EMS/GGS. In my meeting with Luke and Aaron Brown, they had asked me to speak with you so you can provide us guidance on this matter. I strongly believe they are unlawfully assessing demurrage for containers that we do not have access to during its tariff free time. SB 45, Chapter 28.5 clearly spells out when demurrage can be assessed. I will send you

Robert Loya

Director of Operations

CMI Transportation, LLC

www.cmiamerica.com

Phone (310) 549-5100

Fax (310) 549-6100

Cell (562) 714-9627

Begin forwarded message:

From: Robert Loya <Robert.Loya@cmiamerica.com>

Date: August 10, 2018 at 2:59:10 PM PDT

To: Desiree Finlinson <dfinlinson@keelsonmgt.com>, Jeanette Landeros
<Jeannette.Landeros@cmiamerica.com>

Cc: EMS Import <u_ems_import@emslax.com>, Brett Arnds
<Brett.Arnds@cmiamerica.com>, Nelson Gonzalez <Nelson.Gonzalez@cmiamerica.com>,
EMS Demurrage <u_ems_demurrage@emslax.com>, EMSCS_MGT
<EMSCS_MGT@emslax.com>, Jose Alfonso Saiz <JoseAlfonso.Saiz@cmiamerica.com>,
"Weston LaBar (weston@harbortrucker.com)" <weston@harbortrucker.com>, Alex Cherin
<alex@ekapr.com>, "FF28@FMC.gov" <FF28@FMC.gov>, Robert Loya
<Robert.Loya@cmiamerica.com>

Subject: RE: [EMS Management Customer Service] RE: No appointments available
before LFD

Desiree,

As I previously requested, please provide us the original notification to the industry spelling out the requirement below. We believe this request is onerous, unreasonable, discriminatory and unlawful. The container was not made available to us during its free time. We will pursue other means to address this unreasonable business practice. EMS/Keelson is unlawfully assessing demurrage for a container that we do not have access to. Not only does it violate SB 45, Chapter 28.5, 22928 (b) 5, d, 4, in our opinion this also violates the Shipping Act and Port tariff.

We suggest that you stop this practice and reconsidering extending the LFD so we can retrieve this container for our customer.

Robert Loya

Director of Operations

CMI Transportation, LLC

www.cmiamerica.com

Phone (310) 549-5100

Fax (310) 559-6100

Cell (562)714-9627

From: Desiree Finlinson [<mailto:dfinlinson@keelsonmgt.com>]

Sent: Friday, August 10, 2018 2:43 PM

To: Jeanette Landeros

Cc: EMS Import; Brett Arnds; Nelson Gonzalez; EMS Demurrage; EMSCS_MGT; Robert Loya

Subject: Re: [EMS Management Customer Service] RE: No appointments available before LFD

Distr,

After reviewing your request, we unable to assist in extending LFD because it wasn't received within 24 hours of container discharging. Container discharged on 8/4/18 and request for extension wasn't received until 8/7/18. Should have been received by 8/6/18 in order to be reviewed or considered to qualify within first 24 hours.

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- Secure soonest appointment available
- LFD update will be granted to the appointment date
- Send above information to EMS import clerks ([u_ems_import@emslax.com](mailto:ems_import@emslax.com))

BMOU4872868

EGSU1009544

Regards,

Desiree Finlinson

Keelson Management LLC

(480) 935-5723 - Office

(480) 271-3779 - Cell

dfinlinson@keelsonmgt.com

On Fri, Aug 10, 2018 at 1:37 PM, Jeanette Landeros <Jeannette.Landeros@cmiamerica.com> wrote:

Desiree,

I sent an email on Tuesday and I get a reply until Friday at 1:30 in the afternoon (I sent 2 request about this today). If this wasn't going to be approved it would have been nice to receive an email same or following day of my request. Now instead of paying 1 day of demurrage we will be responsible for a lot more day of demurrage because it took 3 days for a reply. Since our driver couldn't pick up the load this morning due to demurrage appointment expired and I'm not able to secure a new appointment until tomorrow.

Jeannette Landeros

CMI Operations
[1501 East Lomita Blvd.](#)
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax

Error! Filename not specified.

From: Desiree Finlinson [mailto:dfinlinson@keelsonmgt.com]

Sent: Friday, August 10, 2018 1:22 PM

To: Jeanette Landeros

Cc: Denise Cervantes; EMS Import; Brett Arnds; Nelson Gonzalez; EMS Demurrage; EMSCS_MGT

Subject: Re: [EMS Management Customer Service] RE: No appointments available before LFD

Distr,

After reviewing your request, we unable to assist in extending LFD because it wasn't received within 24 hours of container discharging. Container discharged on 8/4/18 and request for extension wasn't received until 8/7/18. Should have been received by 8/6/18 in order to be reviewed or considered to qualify within first 24 hours.

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- Secure soonest appointment available
- LFD update will be granted to the appointment date
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BMOU4872868

EGSU1009544

Regards,

Desiree Finlinson

Keelson Management LLC

(480) 935-5723 - Office

(480) 271-3779 - Cell

dfinlinson@keelsonmgt.com

On Fri, Aug 10, 2018 at 8:16 AM, Jeanette Landeros <Jeannette.Landeros@cmiamerica.com> wrote:

Good Morning,

Please advise asap, I sent an email on Tuesday 8/07/18 and container still on demurrage. We had an 8am appointment secure for pick up today.

Jeannette Landeros

CMI Operations
[1501 East Lomita Blvd.](#)
Wilmington, CA 90744
(310) 549-5100 Office
(310) 549-6100 Fax

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From: Denise Cervantes [mailto:denise_cervantes@emslax.com]
Sent: Wednesday, August 08, 2018 1:45 PM
To: EMS Import
Cc: Brett Arnds; Nelson Gonzalez; Jeanette Landeros; EMS Demurrage; EMSCS_MGT
Subject: Re: No appointments available before LFD

MGT,

PLEASE ADVISE IF WE MAY EXTEND LFD FOR CONTAINERS BELOW.

THANK YOU

DENISE CERVANTES

On Tuesday, August 7, 2018 at 1:13:12 PM UTC-7, Jeanette Landeros wrote:

Please extend LFD, both containers are LFD 8/09 and no appointments available before LFD

BMOU4872868
EGSU1009544

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Jeannette Landeros

CMI Operations
[1501 East Lomita Blvd.](#)
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